(9) Within a week of the trial starting before the special tribunal, Bhagat Singh had on 8 May 1930 complained of being down with fever and of ‘feeling extremely weak’ as he had been put on ‘very strong’ medicines the night before. He requested that ‘a reclining seat be arranged for him just behind defence counsel or, if that cannot be arranged, he be sent to jail and that the trial be proceeded with in his absence to which the petitioner has got no objection whatsoever’. However, even if such an application was submitted by the accused, it behoved the court to provide him with proper seating arrangements rather than be content with despatching him back to jail. In a case where the liberty of the subject is at stake, holding a trial in his absence is against the canons of justice (Lahore Archives, previously unpublished).